

TENTATIVE RULING

Case: **Woodland CIC LP v. Edwards**
 Case No. CV2026-0492

Hearing Date: **April 24, 2026** **Department Two** **1:30 p.m.**

Defendant Lechel Edwards’ motion to set aside default and default judgment is **DENIED**. (Code Civ. Proc., §§ 473, subds. (b) & (d), 473.5, 128, subd. (a)(8), 86, subd. (b)(3).) First, defendant has not shown that the default and default judgment were entered against her through “her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b); *Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921; see also *Davis v. Thayer* (1980) 113 Cal.App.3d 892, 900; Edwards decl.) Third, the motion was not “accompanied by an affidavit showing under oath that [defendant’s] lack of actual notice in time to defend the action was not caused by...her avoidance of service or inexcusable neglect.” (Code Civ. Proc., § 473.5, subd. (b); Edwards decl.) Finally, defendant failed to establish that the judgment is void or was obtained through extrinsic fraud, mistake, inadvertence, or excusable neglect. (Code Civ. Proc., §§ 473, subd. (d), 128, subd. (a)(8), 86, subd. (b)(3); *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Edwards decl.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.